TOWN OF NORTH PROVIDENCE
ORDINANCE 23-026 Z
AN ORDINANCE TO AMEND THE TOWN OF NORTH PROVIDENCE CODE OF ORDINANCES AND ZONING MAP WITH REFERENCE TO TOWN OF NORTH PROVIDENCE TAX ASSESSOR'S PLAT 14, LOT 381

It is hereby ordained by the Town of North Providence as follows:

SECTION 1: The Zoning Ordinance and the Zoning Map of the Town of North Providence are hereby amended as follows:

Tax Assessor's Plat 14, Lot 381 (the "Property") shall remain in the Institutional zoning district. Additionally, notwithstanding the fact that schools are prohibited in all zoning districts under Section 203, Subsection N of the Zoning Ordinance, the Excel Academy Charter School, and the expansion of the Excel Academy charter school as generally depicted on the attached plan and as approved by the North Providence Planning Board shall be a permitted use of the Property. In addition, this amendment to the Zoning Ordinance and Zoning Map is subject to the following Special Conditions:

Special Conditions

1. Section 204. 'District Dimensional Regulations – Institutional' – The Property may maintain lot coverage of forty percent (40%).

2. Section 211. 'Corner Lots' — The constructed expansion may be located 8.0 feet from the front property boundary fronting Stevens Street.

3. Section 213. 'Design Specifications – Institutional' –The proposed classroom facility modular structures, may be temporary in nature notwithstanding construction methods and materials required by this section.

4. Section 703. 'Parking' – The proposed parking facilities located directly on property boundaries may be maintained.

5. Section 706. 'Screening and/or Landscaping' – The proposed parking facilities, which will be located in direct view of surrounding residences, may be maintained.

SECTION 2: This Ordinance shall become effective upon issuance of final development plan approval by the Town Planner and recording and the execution of a Right of First Refusal for the purchase of the property by the Town of North Providence in the event that Excel Academy terminates its operations on the Property in a form approved by the Town Solicitor.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: Dec. 5, 2023

Council President

Approved: Dec. 7, 2023

Mayor

Town Clerk